

3.	26CV0127	FRUEAN vs. COUNTY OF EL DORADO
Petition for Relief from Government Claims Act		

Before the Court is a Petition for relief from the requirements of Government Code § 945.4.

On July 10, 2024, Petitioner was severely injured in a motor vehicle collision during the course of his employment. Petitioner's injuries were extreme and his medical condition following the incident was such that "[h]e was unable to move, care for himself, or meaningfully communicate due to his severe injuries", and required "total assistance with all activities of daily living, respiratory dysfunction, dysphagia care, and ongoing treatment for neurologic deficits, tracheostomy care, tube feeding, and catheterization" through October, 2024. Declaration of Jean-Jacques Abitbol, M.D., dated December 31, 2025 ("Abitbol Declaration"), para. 5-6.

Between October 2024 and August 2025:

[Petitioner] continued to require 24/7 care, including skilled nursing for suprapubic catheter and colostomy care, respiratory management due to recurrent infections, repositioning every two hours to prevent pressure wounds, and total assistance for all mobility and self-care. His medical course was complicated by upper respiratory infections requiring ventilatory support, a COVID-19 infection, decubitus ulcers, and ongoing cognitive impairment including memory deficits, slowed processing, and impaired communication. He remained unable to move or care for himself in any way.

Abitbol Declaration, para. 7. See *also*, Declaration of Thomas Schweller, M.D., dated December 31, 2025; Declaration of Manuia Fruean, dated December 15, 2025.

During the period of his recovery a guardian ad litem ("GAL") was appointed for Petitioner by order of the Workers Compensation Appeals Board on June 3, 2025. Petitioner's attorney filed a late claim against El Dorado County ("County" or "Respondent") on his behalf on June 30, 2025, pursuant to Government Code § 911.4. Petition, Exhibit 1. This request to file a late claim was denied on August 8, 2025. Petition, Exhibit 2.

Government Code § 946.6(c) provides Petitioner the opportunity to request relief from the Court, which relief must be granted if the reason for filing the claim after the statutory deadline was due to mistake, inadvertence, surprise and excusable neglect, or if "[t]he person who sustained the alleged injury, damage, or loss was physically or mentally incapacitated during any of the time specified in Section 911.2 for the presentation of the claim and by reason of that disability failed to present a claim during that time, . . ."

Petitioner contends that he comes within the statutory definition of medical incapacity for the purpose of Section 946.6(c)(5), as well as the circumstance of "excusable neglect" listed

in Section 946.6(c)(1) given his extreme injuries and physical and mental incapacity during the claim filing period.

Respondent argues that the late claim application was not legally effective because it was not filed by Petitioner's legally appointed GAL, and he concedes that he lacked the mental capacity to file such a claim himself at the time that it was filed. Accordingly, Respondent claims that there is no legally effective claim before the Court. The Court disagrees. The plain language of Government Code § 910, directly addressing the issue of claims filed by persons other than the claimant, states that "[a] claim shall be presented by the claimant or by a person acting on his or her behalf." *See also*, Government Code § 910.2, which requires the claim to be signed by the claimant "or by some person on his behalf." The Legislature could have used other words to indicate a "legal representative," "guardian ad litem", "conservator", "parent", "agent" or other language to indicate the necessity of a narrowly defined legal relationship between the filer and the claimant, but it did not.

The purpose of the statute is to provide the government with actual notice of a potential claim and an opportunity to address it administratively to prevent unnecessary litigation at public expense. This purpose is served regardless of the identity of the person filing the claim. Nor does the identity of the filer affect the underlying validity of the claim or the government's ability to ultimately contest its merit. Although Government Code § 910.8 provides a process for the government to reject a claim as non-conforming to the form or content requirements of Section 910 and 910.2, the County's Claims Administrator did not deny the claim based on lack of standing, or refuse to process it based on the identity of the filer, which was clearly indicated as "attorney" on the form.

Further, while the chain of events does not appear in the record, Petitioner's attorney filed the claim on Petitioner's behalf within a few weeks after the GAL was appointed; this could not have occurred unless the GAL retained counsel to pursue a claim and so it is reasonable to infer that the attorney acted according to the GAL's instructions. *See, e.g. Cnty. of Los Angeles v. Superior Ct. (Crystal B., Steven G., Anita G.)*, 91 Cal. App. 4th 1303, 1311 (2001) ("[T]he guardian oversees any attorney representing minor's litigation-related interests and may make tactical and even fundamental decisions affecting the litigation, but always with the interest of the minor in mind.")

The cases cited by Respondent do not mandate that only a GAL may file a claim on behalf of an incapacitated petitioner. *Hernandez v. Cnty. of Los Angeles*, 42 Cal. 3d 1020 (1986) held that a mentally incapacitated minor does not receive any additional extension of time to file a

late claim under Section 911.4(c)(1)¹ because the Legislature presumed that a minor already has a parent or guardian in place, whereas a mentally incapacitated adult may require additional time for a third party to be appointed to oversee matters that the adult would normally be available to handle themselves. Cnty. of Los Angeles v. Superior Ct. (Crystal B., Steven G., Anita G.), 91 Cal. App. 4th 1303 (2001), held that where a minor is legally in the custody of a juvenile court, the time for filing a claim was not tolled by the appointment of court-appointed counsel because, as a public employee, counsel appointed by the juvenile court has an inherent conflict of interest, such that it couldn't even be counted on to recommend the appointment of a GAL. Accordingly, the statutory claims period was tolled once those minors "had a parent or guardian capable of representing their interests". Cnty. of Los Angeles v. Superior Ct., 91 Cal. App. 4th at 1313. Indeed, in that case once their dependency case terminated, "[m]inor's new counsel filed such application" Id.

Request for Continuance

Respondent requests additional time before this hearing to conduct discovery on this issue of Petitioner's standing to file a late claim petition. While the Court acknowledges that the statutes require the Court to consider all evidence presented at the hearing, Respondent acknowledges that this is a summary proceeding. The sole purpose is to determine Petitioner's right to relief from a statutory deadline for submitting a claim according to two evidentiary questions: 1) whether the Petitioner is "physically or mentally incapacitated during any of the time specified in Section 911.2 for the presentation of the claim and by reason of that disability failed to present a claim during that time", or 2) whether the Petitioner's physical and/or mental condition amounts to "excusable neglect."

In its March 9, 2026, Opposition Respondent indicated that it would issue subpoenas for witness testimony at the hearing, which it is free to do. Respondent also claims that it had no opportunity to conduct discovery between the time it received notice of the Petition and the hearing date. Petitioner's March 13, 2026, Declaration of Jamie Ritterbeck, declares that Respondent was served on February 10, 2026, for a March 6, 2026, hearing, which was subsequently continued at the County's request to March 20, 2026, but has not served any discovery during this period other than a deposition subpoena which Petitioner alleges did not meet statutory requirements. Declaration of Jamie Ritterbeck, dated March 13, 2026, paras. 4-6. Petitioner has not received subpoenas to testify at the hearing as of March 13, 2026. Id. at para. 8. Respondent has not alleged that Petitioner's filings in this matter have violated any statutory deadlines.

¹ "The time during which the person who sustained the alleged injury, damage, or loss as a minor shall be counted, but the time during which he or she is mentally incapacitated and does not have a guardian or conservator of his or her person shall not be counted." Government Code § 911.4(c)(1).

Further, Respondent's Claims Administrator could have extended the period for evaluating the claim during the administrative review process if additional facts were required to establish Petitioner's eligibility to submit a late claim, and did not. Government Code § 912.4.

Finally, this hearing only establishes whether Petitioner is entitled to maintain a claim. It does not cast any weight on the ultimate determination of whether Respondent is liable for Petitioner's injuries. Respondent will have every opportunity to test the merits of the case going forward.

Based upon the evidence in the record, the Court finds that the Petitioner has demonstrated that it meets the definitions set forth in of Government Code § 946.6(c)(1) and (c)(5), and has thus established the right to submit a late claim.

TENTATIVE RULING #3: THE PETITION IS GRANTED.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 621-6551 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999).

NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY TELEPHONE OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; EL DORADO COUNTY LOCAL RULE 8.05.07. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.

LONG CAUSE HEARINGS MUST BE REQUESTED BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED AND THE PARTIES ARE TO PROVIDE THE COURT WITH THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. LONG CAUSE ORAL ARGUMENT REQUESTS WILL BE SET FOR HEARING ON ONE OF THE THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. THE COURT WILL ADVISE THE PARTIES OF THE LONG CAUSE HEARING DATE AND TIME BY 5:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. PARTIES MAY PERSONALLY APPEAR AT THE HEARING.